

US Cosmetics Regulation FD&C + MoCRA (MoCRA 3)

Title: Serious Adverse Event Reporting for Cosmetic Products

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act, §605; 21 U.S.C. §364d — Serious adverse event reporting; as amended by the Modernization of Cosmetics Regulation Act of 2022 (MoCRA), Pub. L. 117-328

Plain English Summary:

A responsible person for a cosmetic product must report a serious adverse event associated with the product to FDA within 15 business days after receiving the required information. The responsible person must also maintain records of serious adverse events and keep supporting information for the required period. This is important for an Ayurvedic cosmetic startup because serious reactions to products such as herbal creams, oils, shampoos, or other topical products can trigger a federal reporting obligation.

The Exact Legal Text:

21 U.S.C. §364d Serious adverse event reporting

(a) In general

A responsible person shall submit to the Secretary a report of each serious adverse event associated with such cosmetic product when used in the United States, including a copy of the label on or within the retail packaging of such cosmetic product, no later than 15 business days after the report is received by the responsible person.

(b) Supplemental information

A responsible person shall submit to the Secretary any new medical information received by the responsible person related to a serious adverse event that was previously reported to the Secretary under subsection (a), no later than 15 business days after the report is received by the responsible person.

(c) Records

A responsible person shall maintain records related to each report of a serious adverse event for a period of 6 years after the date of the report, except that a responsible person that qualifies as a small business shall maintain such records for a period of 3 years after the date of the report.

Important: This is one of the provisions where the actual statutory section number matters, so keep both §605 and 21 U.S.C. §364d in your database. FDA identifies serious-adverse-event reporting as one of the requirements introduced by MoCRA and specifies the 15-business-day reporting period.

Keywords/Triggers:

serious adverse event, cosmetic adverse event, MoCRA reporting, FDA adverse event report, 15 business days, Ayurvedic cosmetic reaction, cosmetic safety reporting, 21 USC 364d

MoCRA Cosmetic Facility Registration and Product Listing

Title: Cosmetic Facility Registration and Product Listing

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §§607(a) and 607(c), as added by the Modernization of Cosmetics Regulation Act of 2022 (MoCRA), Pub. L. 117-328 (2022); 21 U.S.C. §§364i(a) and 364i(c)

Plain English Summary:

Under MoCRA, a person who owns or operates a facility that manufactures or processes cosmetics for distribution in the United States generally must register the facility with FDA, and the registration must be renewed every two years. The responsible person for a marketed cosmetic must also submit a cosmetic product listing to FDA, including required product and facility information, and update the listing annually. Certain small businesses are exempt, subject to the statutory exceptions.

The Exact Legal Text:

21 U.S.C. §364i(a) Registration of cosmetic product facilities

Each person that owns or operates a facility that engages in manufacturing or processing of a cosmetic product for distribution in the United States shall register each facility with the Secretary.

The statute further establishes requirements concerning the information submitted for registration, updates to registration information, and biennial renewal of facility registration.

21 U.S.C. §364i(c) Cosmetic product listing

For each cosmetic product that is marketed in the United States, the responsible person shall submit to the Secretary a cosmetic product listing.

The product-listing requirements include information identifying the cosmetic product, the responsible person, and the facility or facilities where the product is manufactured or processed. The responsible person must update the listing as required by the statute. FDA's current implementation materials identify this as a MoCRA requirement under FD&C Act §607.

Keywords/Triggers:

cosmetic facility registration, MoCRA registration, FDA cosmetic registration, cosmetic product listing, responsible person cosmetics, 21 USC 364i, FD&C Act Section 607, cosmetic FDA listing